

MT.1 The Owner-Builder Exemption Walkthrough

What Montana actually requires of a person building their own house — the contractor license that appeared in 2026, the building code that may not apply, and the three duties that survive the exemption anyway.

Before you use this document

This is a process reference, not legal advice. Montana's building code does not apply to a residential building of fewer than five dwelling units unless the local legislative body has adopted it (50-60-102(1)(a), MCA) — but the electrical permit, the energy code, and all of water and wastewater law survive that exemption, on separate tracks with separate offices. Confirm every item with the office that will actually issue it. Statute text was read from the Montana Code Annotated at mca.legmt.gov in August 2026; statutes change, and Montana changed this area of law effective January 1, 2026.

THE SHORT VERSION

Montana licenses no **residential general contractor** in the sense most states mean — there is no exam, no experience requirement, and no trade competency test for the person building a house. What Montana has instead, as of **January 1, 2026**, is a **construction contractor license** aimed at insurance compliance, and it carries an owner exemption you almost certainly qualify for. The **state building code** very likely does not apply to your house at all: by statute it *"does not apply to ... residential buildings containing less than five dwelling units"* unless your local legislative body has adopted it, and the state *"may not enforce"* it for those buildings. **But three duties survive that exemption**, and they are the three nobody tells you about: an **electrical permit** your power supplier is forbidden to connect you without, an **energy code** you certify in writing yourself, and the entire body of water, wastewater, and land-use law that chapter 60 never touched.

37-45-201(1), 37-45-104(13); 50-60-102(1)(a), (2), (5); 50-60-604, 50-60-605; 50-60-802(1), MCA. Read August 2026.

Before you read anything else about Montana contractors — check the date

On **January 1, 2026** Montana repealed and renumbered its entire contractor statute. **MCA Title 39, chapter 9 — "Contractor Registration" — is dead law.** Sections 39-9-101, -102, -103, -201, -204, -206, -207 and -401 were repealed (Ch. 481 and Ch. 644, Laws of 2025); 39-9-205 was renumbered **37-45-205** and the exemptions at 39-9-211 were redesignated **37-45-104**. The live chapter is **MCA Title 37, chapter 45 — Construction Contractors**. Nearly every Montana owner-builder guide, article, and forum answer still cites the repealed chapter, and several still describe the credential as a registration rather than a license. If what you are reading cites Title 39 chapter 9, it was written for a Montana that no longer exists.

THE CONSTRUCTION CONTRACTOR LICENSE — MCA TITLE 37, CHAPTER 45

The rule is flat: *"An individual or business entity may not engage in business as a construction contractor **without a current license from the department**" (37-45-201(1)).* What the application asks for tells you what the license is really for — a Social Security number, *"proof of compliance with workers' compensation laws,"* an employer identification number, and the names of the partners, officers, or members. There is **no examination and no competency requirement in the statute**. This is an insurance and accountability credential wearing the word "license."

That word is new. Until January 1, 2026 the same credential was called a **registration** and lived in the labor title; the 2025 Legislature moved it into the professions and occupations title and restated its purpose as protecting *"the public health, safety, and welfare of the public through the regulation of construction contractors"* (37-45-101). Parts of the chapter still say "registered" and "register" where the new sections say "license" — both words appear in the same chapter today. Do not read anything into which one a particular subsection uses.

The definition reaches further than you expect

Most people read the first half of the definition, see the words *"for another,"* and stop — a contractor is someone who builds for someone else. But there is a second half, and it is about **your own property**. A "construction contractor" is a person who:

*"(a) **in the pursuit of an independent business**, offers to undertake, undertakes, or submits a bid to construct, alter, repair, add to, subtract from, improve, move, wreck, or demolish **for another** a building ... **or** (b) in order to do work similar to that described in subsection (1)(a) **on the construction contractor's property, employs members of more than one trade on a single job or under a single building permit, except as otherwise provided"** (37-45-102(1)).*

What (1)(b) means for you, in plain terms

Subsection (1)(b) is the one that reaches owner-builders. If you **employ** members of **more than one trade** on a single job on your own property, the definition catches you — and then you need the exemption below to get back out. The load-bearing word is **employs**: engaging separate independent businesses under their own licenses is not the same thing as employing tradespeople. This is exactly the distinction that decides your workers'-compensation exposure too, which is why the two questions are really one question. See the hiring rules below and MT.2.

The owner exemption, in full

Twenty-four exemptions sit at 37-45-104 — the section formerly numbered 39-9-211. The one that matters is **(13)**, and it is unusually generous. The chapter does not apply:

*"(13) to **an owner working on the owner's property, whether occupied by the owner or not**, but this exemption does not apply to an owner who is otherwise covered by this chapter who constructs an improvement on the owner's property **with the intention and for the purpose of promptly selling the improved property**, unless the owner has **continuously occupied the property as the owner's primary residence for at least the last 12 months**."*

Reading 37-45-104 as an owner-builder

The point	What the statute says
No occupancy requirement	The statute says " <i>whether occupied by the owner or not</i> ." Montana does not ask you to live in the house — which would be impossible for one under construction — and does not ask you to promise to. Guides that print "a home you own and live in" are adding words the statute does not contain.
One condition: the flip	The exemption drops away if you build " <i>with the intention and for the purpose of promptly selling</i> ." It is a test of purpose at the time you build, not a ban on ever selling. And it has its own escape: an owner who has continuously occupied the property as a primary residence for at least the last 12 months keeps the exemption even then.
Hiring one licensed contractor	Exemption (12) covers " <i>an owner who contracts for work to be performed by a registered construction contractor</i> " — with the same anti-flip proviso. So the ordinary owner-builder pattern, hiring licensed trades and running the job yourself, sits inside two exemptions at once.
The small-job line	Exemption (8) covers work " <i>of a casual, minor, or inconsequential nature</i> " whose aggregate contract price for labor, materials, and all other items is less than \$2,500 a job — but expressly not where the work " <i>is only a part of a larger or major operation</i> " or is split into sub-\$2,500 contracts " <i>for the purpose of evasion</i> ." Nobody builds a house under this exemption.
Trades you hire	A Montana-licensed electrician or plumber operating within the scope of the license is exempt from this chapter entirely (16), as is a licensed water well contractor doing water well work (20) and a Montana-licensed architect or engineer acting solely in a professional capacity (15).

Reading 37-45-104 as an owner-builder

The point	What the statute says
Solo trades	"An independent contractor who has no employees" is exempt (24) — though the statute lets one "voluntarily elect to register." A great many Montana subcontractors are one-person businesses, so expect this to come up, and see the certificate discussed below.

37-45-101, 37-45-102(1), 37-45-104(8), (12), (13), (15), (16), (20), (24), 37-45-201(1), 37-45-203(1), MCA (chapter effective January 1, 2026; 37-45-104 redesignated from 39-9-211 by Sec. 20, Ch. 644, L. 2025). The department sets the license application fee by rule (37-45-203(1)); no figure appears in statute, so none is printed here.

IF YOU HIRE ANYONE — THE SHIELD, AND HOW YOU LOSE IT

This is the most valuable paragraph in the document for anyone paying for labor. Montana gives you a statutory shield, and it is switched on by one fact: whether the person you engaged holds a license.

The workers'-compensation shield — 37-45-202

"A person who, pursuant to an oral or written contract, **engages a construction contractor who is licensed under this chapter on the date of the contract is not liable as an employer for workers' compensation coverage under 39-71-405, for unemployment insurance coverage, or for wages and fringe benefits**" for that contractor, that contractor's employees, or a subsequent subcontractor and its employees (37-45-202).

Read the trigger: **licensed on the date of the contract**. Not licensed last year, not "applying," not licensed by the time the work happens. If the crew framing your house is working for someone who was unlicensed the day you shook hands, the shield never attached — and an injury on your site becomes a question about whether **you** were the employer. That is not a theoretical risk; it is the reason this statute exists. Verify the license, on the day you sign, and keep the printout.

The parallel rule for one-person businesses is the **independent contractor exemption certificate** under 39-71-417. The new chapter makes it unprofessional conduct for a licensee to hire or classify someone as an independent contractor who lacks a required certificate, or whose certificate the department has suspended, revoked, or denied (37-45-301(1)(d)). Ask every solo trade for the certificate and file a copy.

37-45-202, 37-45-301(1)(d), MCA; 39-71-405, 39-71-417, MCA. Read August 2026. Whether any particular arrangement makes you an employer is a fact-specific question — this is the statutory rule, not advice about your job.

THE BUILDING CODE THAT PROBABLY DOES NOT APPLY TO YOUR HOUSE

Montana writes one statewide building code, adopted by rule by the Department of Labor & Industry (50-60-203). Then the applicability section takes your house back out of it. The state building code "**does not apply to ... residential buildings containing less than five dwelling units or their attached-to structures, any farm or ranch building of any size, and any private garage or private storage structure of any size used only for the owner's own use, located within a county, city, or town, unless the local legislative body by ordinance or resolution makes the state building code applicable to these structures**" (50-60-102(1)(a)). And the state's hands are tied: "*the state may not enforce the state building code under 50-60-205 for the buildings ... referred to in subsection (1)*" (50-60-102(2)).

Say this precisely — it is not what most guides say

The common phrasing is "the code still applies, there is just nobody to inspect it."

That is not what the statute says. It says the code **does not apply** — a scope limit, not an enforcement gap — unless your county, city, or town has affirmatively adopted it for these structures. Which cuts both ways. It means no building official can cite you under a code that does not reach your house. It also means **no code compliance is presumed**, and when a lender, insurer, appraiser, or buyer asks what your house was built to, the honest answer is whatever you can document — which is why MT.3 exists.

Two consequences worth knowing. **Where a local government has adopted nothing**, "*the state building code applies within the county, city, or town and the state will enforce the code in these areas*" (50-60-205(1)) — for everything the 50-60-102(1) exemption did not carve out. Your house is carved out; a five-unit apartment building on the same street is not. **And a local government cannot enforce a code at all unless the department has certified its program** (50-60-302(1)), with inspectors who are themselves state-licensed journeymen in the craft they inspect or certified by an approved national body (50-60-302(1)(c)).

The rule that surprises people from other states

In most of the country a state building code is a **floor**: cities may add to it, and famously do. Montana wrote the opposite. "*Except as provided in subsection (2)(b), a county, city, or town may not adopt or enforce a building code that is more stringent than the building code adopted by the department or as required by state law*" (50-60-301(2)(a)). The single exception is **voluntary**: a local government may adopt incentive-based energy standards that exceed the state's, and "*New construction is not required to meet local standards that exceed state energy conservation standards unless the building contractor elects to receive a local incentive*" (50-60-301(2)(b)).

So the amendment-hunting that dominates permitting in Colorado, California, or Washington is largely absent here — **within the building code**. What varies locally is everything the building code is not: zoning, subdivision, floodplain, driveway access, addressing, fire district requirements, and the fee schedule. Those are the questions to spend your phone calls on.

One more absence worth having in writing, because it comes up in every conversation about cost: the department **may not include in the state building code** "*a requirement for the*

installation of a fire sprinkler system in a single-family dwelling or a residential building that contains no more than two dwelling units" (50-60-203(5)(a)), nor a requirement that buildings be built with solar or electric-vehicle wiring or equipment (50-60-203(5)(b)).

50-60-102(1)(a), (2); 50-60-203(5)(a), (5)(b); 50-60-205(1); 50-60-301(2)(a), (2)(b); 50-60-302(1), (1)(c), MCA. Read August 2026. Whether YOUR local legislative body has adopted the code for residential buildings is the first question in MT.4, and the only one that changes everything else.

ELECTRICAL — THE EXEMPTION THAT IS NARROWER THAN IT LOOKS

Here is the sentence every Montana owner-builder has read: *"this chapter does not require an individual to hold a license to perform electrical work on the individual's own property or residence if the property or residence is maintained for the individual's own use"* (37-68-103(3)(a)). It is real, and it is generous — no single-family limit, no occupancy requirement, no not-for-sale clause. Now read what it does **not** say, by comparing it with its neighbors in the very same section.

Three exemptions, one section, two different scopes

Subsection	What it exempts you from
37-68-103(2) maintenance electricians	"The licensing or inspection provisions of this chapter do not apply ..."
37-68-103(7)(a) apprentices	"The licensing and inspection provisions of this chapter do not apply ..."
37-68-103(3)(a) you, the homeowner	"this chapter does not require an individual to hold a license ..." — the word "inspection" is absent, and so is the word "permit"

THE TRAP — a license exemption is not a permit exemption

The Legislature knew how to exempt someone from inspection: it did so twice in the same section, in plain words. For the homeowner it wrote something narrower. **You are excused from holding an electrician's license. You are not excused from the permit or the inspection.**

And it could not have been otherwise, because the permit does not live in that chapter at all. The electrical permit duty is in a different title: the department *"or an authorized representative or a county, city, or town certified to perform an inspection pursuant to 50-60-302 shall inspect electrical installations, issue electrical permits for these installations, and establish and charge a reasonable and uniform fee"* (50-60-604). An exemption written in Title 37 cannot waive a duty written in Title 50. Whenever you meet a Montana exemption, ask which title it lives in.

Note also what the electrical part does **not** exempt. Part 6 has its own exceptions list at 50-60-602 — utility signal and traffic equipment, refineries, mines, low-voltage signal and fiber — and **nothing in it about residential buildings of fewer than five dwelling units**. The carve-out that took your house out of the building code never reached the electrical part.

How Montana enforces it: at the meter

Montana does not send anyone looking for you. It waits at the point where you need something. *"Except for temporary connections that the department of labor and industry may authorize by rule for a period not exceeding **14 days** without a preconnection inspection, **power suppliers may not connect with or energize an electrical installation under this part unless the owner or a licensed electrical contractor has delivered to the power supplier an electrical permit covering the installation**" (50-60-605).* The statute defines power suppliers broadly — *"Individuals, firms, cooperatives, corporations, or municipalities selling electricity"* — so your rural electric cooperative is bound by it exactly as an investor-owned utility is. Note the words **"the owner or"**: you may deliver the permit yourself.

And going around it is a crime, not a fee. *"Any person ... other than a power supplier, that energizes an electrical installation under this part for which an electrical permit has not been issued ... is guilty of a **misdemeanor**" (50-60-607).* However quiet your county is about building permits, this is the gate: **no electrical permit, no permanent power.**

The one thing you may not do yourself — grid-tied

The homeowner exemption has exactly one written carve-out, and it is aimed squarely at the modern rural build: *"Subsection (3)(a) **does not include an exemption for an individual who is performing electrical work on a grid-tied generator located at the individual's own property or residence**" (37-68-103(3)(b)).* If your plans include a grid-tied solar array, a grid-tied wind turbine, or an interconnected standby generator, that work needs a **licensed electrician** even though the rest of the house does not. Off-grid systems with no utility interconnection are not what this subsection describes — but if there is any chance you will interconnect later, price the licensed work now.

The condition the statute does not mention

The licensing exemption in 37-68-103(3)(a) has no not-for-sale clause. The **permit** rule does. **ARM 24.301.431(3)** defines who may hold an electrical permit and includes owners doing electrical work on their own residence, farm, or ranch property *"maintained for their personal, private use"* — adding that the property *"shall not be built on speculation of resale or intended as rental property."* So the practical rule for both trades is the same, and it comes from the rules rather than the code: **you may permit your own work on the home you will actually live in, and not on one you are building to sell or rent.** A spec or rental build needs a licensed electrician and a licensed plumber. The plumbing rule is worded slightly tighter still, reaching *"the dwelling in which they will reside"* (ARM 24.301.361(3)).

The rule that ends "my buddy is going to help me wire it"

This is the single most commonly broken rule in Montana owner-building, and almost nobody knows it exists. Under **ARM 24.301.431(8)**, **no person other than the permittee** — or, where the permittee is an electrical contractor, that contractor's licensed employees — may perform **any** work under the permit.

Read that against the homeowner permit. You pulled it as the owner doing your own work. That means **you** do the work: not your brother-in-law who wires for a living, not a friend who is between jobs, not a neighbor helping for a weekend. If someone else is going to put hands on it, the lawful routes are a licensed electrician pulling their own permit, or that person working as a licensed electrical contractor's employee under the contractor's permit. And remember the inspector is **required** to demand proof of licensure from anyone on site who appears involved with the installation (50-60-604) — so this is checked in practice, not just on paper.

"No permit" has never meant "no requirements"

If you want one rule that settles the argument, it is this one. Montana's electrical amendments require smoke alarms and carbon monoxide alarms to be installed per the adopted building and residential codes **"regardless of whether or not the building or structure is exempt by 50-60-102, MCA"** (ARM 24.301.411(1)(d)). The rule reaches out specifically to name the exemption that took your house out of the building code — and applies anyway. Whatever else you conclude about building without a permit, the life-safety requirements did not go away with the inspector.

37-68-103(2), (3)(a), (3)(b), (7)(a), MCA; 50-60-602, 50-60-604, 50-60-605, 50-60-607, MCA. Permit-holder conditions and the alarm requirement: ARM 24.301.431(3) and ARM 24.301.411(1)(d), read August 2026 — the department reproduces 24.301.431 in its own Electrical Information Pamphlet, which it labels unofficial guidance, so read the rule itself before you rely on it. The adopted National Electrical Code edition is likewise set by rule, not statute (50-60-603(2)).

PLUMBING — THE MIRROR IMAGE, AND A CONDITION THAT HIDES IN THE RULES

Everything above runs the other way for plumbing, and this is where reading the statute instead of the summary pays for the kit. Montana gives the homeowner **two different plumbing exemptions, in two different titles, with two different conditions**. You need both, and they do not match.

Two plumbing exemptions — take the narrower of the two conditions

Exempts you from	The words	What it actually requires
The PERMIT 50-60-506(4)	<i>"This part does not prohibit the owner of residential property from making an installation for all sanitary plumbing and potable water supply piping without a permit if the owner personally does the work."</i>	Two conditions only <i>in the statute</i> : you own residential property, and you personally do the work. No single-family limit, no occupancy condition. But see the callout below — the administrative rule adds a spec-and-rental condition the statute does not contain.

Two plumbing exemptions — take the narrower of the two conditions

Exempts you from	The words	What it actually requires
The LICENSE 37-69-102(1)(a)	Licensure is not required " <i>when an owner of a single-family residence used exclusively for the owner's personal use installs all sanitary plumbing and potable water supply piping.</i> "	Narrower: it must be a single-family residence and it must be " <i>used exclusively for the owner's personal use.</i> " This is the condition people are half-remembering when they describe the permit rule.

The spec-and-rental condition — real, but not where you would look for it

You will read, on state web pages and in every guide that copied them, that a homeowner may skip the plumbing permit only if the residence "is for the owner's personal use and **not built on speculation of resale or intended as a rental property.**" That sentence is **not in 50-60-506(4)**, which imposes only ownership of residential property and personal performance of the work, and it is **not in 37-69-102(1)(a)**, which imposes a single-family residence used exclusively for the owner's personal use. So is the agency making it up? **No — and this is the lesson.**

The condition lives in the **administrative rule. ARM 24.301.361(3)** provides that permits may not be issued to anyone other than a Montana-licensed master plumber to install plumbing "*in a residence that is built on speculation of sale or rent and is not the owner's primary residence in which they will reside,*" and **ARM 24.301.431(3)** does the same job on the electrical side, limiting owner permits to the owner's own residence, farm, or ranch "*maintained for their personal, private use,*" not "*built on speculation of resale or intended as rental property.*" An administrative rule is binding law. The agency was summarizing the rule, not the statute.

Why this matters far beyond plumbing. Montana keeps an unusual amount of what actually governs your house in the Administrative Rules rather than the code: the adopted code editions, the state's amendments to them, the permit fees, the inspection procedure, and — as here — real conditions on the exemptions. **Reading only the statute will mislead you in Montana.** When someone tells you what Montana requires, ask whether the answer is in the MCA or the ARM, and go read that one. The habit is worth more than any single fact in this kit — and it is the same habit that catches the dead Title 39 citations on page 2.

Three more plumbing carve-outs worth knowing on a rural build. No license is required "*in the case of a private water supply, [for the] installation of the pump, waterline, or pressure tank, regardless of whether the pump, waterline, or pressure tank is located inside or outside the structure being served*" (37-69-102(1)(h)) — so your well pump and pressure tank are yours to install. Plumbing "*on farms having their own individual water supply or sewage disposal system*" is outside the state plumbing part altogether (50-60-503), and outside the plumbing chapter for farms and ranches not connected to public water or sewer (37-69-102(1)(c), (2)). And no state plumbing permit is required "*whenever the installation occurs in an area governed by a county, city, or town and where there is in effect a county, city, or town building code that*

covers plumbing installations and that provides inspection procedures" (50-60-506(3)) — in a certified jurisdiction the permit is local, not absent.

50-60-503, 50-60-506(1), (2), (3), (4), MCA; 37-69-102(1)(a), (1)(c), (1)(h), (2), MCA. Read August 2026. The adopted plumbing code edition is set by rule in ARM Title 24, chapter 301 — confirm it at rules.mt.gov.

THE ENERGY CODE — THE ONE YOU SIGN YOURSELF

This is the duty that surprises everyone, because it sits three subsections below the exemption that people stop reading at. The same section that takes your house out of the state building code puts part of it back: "*for purposes of promoting the energy efficiency of home design and operation, **the provisions of the state building code relating to energy conservation ... apply to residential buildings,***" excepting only farm and ranch buildings and private garages or storage structures used only for the owner's own use (50-60-102(5)(a)).

Then it says who enforces it. For a residential building of fewer than five dwelling units not otherwise subject to the state building code — your house — the energy provisions are enforceable "***through the builder self-certification program provided for in 50-60-802***" (50-60-102(5)(b)(ii)). And 50-60-802(1) says what that means: "*a person who begins construction on a residential building in Montana after October 1, 1993, **shall certify in writing to the building owner at the conclusion of construction that the residential building has been constructed in compliance with the energy-efficient construction standards***" adopted under 50-60-203(1).

You are the builder and you are the owner

Read those two roles again. The person who begins construction certifies, in writing, to the building owner. As an owner-builder you are both — so the statute has you certify to yourself, on paper, at the end of the job. It sounds like a formality until you need it: this document is the **only** code-compliance record many rural Montana houses will ever have, and it is the first thing a lender's appraiser, an insurer, or a future buyer's inspector will ask for. Write it, date it, sign it, and keep it with the house. MT.5 says what belongs in it.

Which edition of the energy code you are certifying to is set by rule, not by statute, and the department may adopt national codes by reference "*in whole or in part*" and "*may adopt rules more stringent than those contained in national codes*" (50-60-203(2)) — Montana has historically amended what it adopts. Read the current adoption in ARM Title 24, chapter 301 at **rules.mt.gov** and write the edition and its effective date into the checklist below before you order insulation or windows.

There is a **second** energy document, and it is physical. Under 50-60-803 and **ARM 24.301.162** the builder completes a signed and dated **permanent label** — a self-adhesive card roughly four inches by six — listing the insulation R-values, window U-factor, heating and cooling equipment efficiencies, and water heater efficiency, and **permanently attaches it to the interior of the electrical panel**. That is where an appraiser or a home inspector will look for it in fifteen years, and it costs nothing to do at the time.

50-60-102(5)(a), (5)(b)(i), (5)(b)(ii); 50-60-203(1), (2); 50-60-802(1), (2); 50-60-803, MCA; ARM 24.301.162. Read August 2026. Subsection 50-60-802(2) adds a parallel certification where a local government with a code

enforcement program has adopted voluntary energy standards that the building meets or exceeds.

WHAT ACTUALLY HAPPENS IF YOU GET IT WRONG

Montana rebuilt its enforcement machinery in 2023 and most published answers are out of date. The old trade-specific criminal penalties were **repealed**: 37-68-322 (electricians) and 37-69-324 (plumbers) both went away by Sec. 11, Ch. 366, L. 2023. Unlicensed practice in any Title 37 profession now runs through one consolidated section.

The live penalties, after the 2023 consolidation

Situation	What the law provides
Unlicensed practice any Title 37 trade	The department " <i>may issue a cease and desist order</i> " on credible evidence that a person is acting " <i>without the license required</i> " (37-1-109(1)). Then: a penalty of not more than \$1,000 a day for each day the order is violated (37-1-109(3)); an action for injunction, with costs of investigation and attorney fees (37-1-109(4)(a), (b)); and anyone who " <i>knowingly or purposely violates</i> " the injunction " <i>is guilty of a felony</i> " (37-1-109(4)(c)). Note the shape: nothing bites until an order issues, and then it escalates fast.
Plumbing without a permit or a license	The Title 37 penalty was repealed but its Title 50 twin survived — a divergence worth knowing. Under 50-60-515 a person who works in the field of plumbing in violation of the part " <i>is guilty of a misdemeanor</i> " and shall be fined " <i>not less than \$10 and not more than \$100 for each separate offense,</i> " expressly excepting the work covered by 37-69-102 and 50-60-503. And starting plumbing work without a required permit costs double the permit fee (50-60-509).
Electrical	Energizing an installation with no electrical permit is a misdemeanor (50-60-607), and knowing violation of the state electrical code is a misdemeanor as well (50-60-110).
Hiring an unlicensed plumber	Montana expressly does not penalize you for it: the chapter " <i>may not be construed as imposing a penalty on any unlicensed person for hiring or contracting with an unlicensed person to do work in the field of plumbing</i> " (37-69-103; twin at 50-60-502). The exposure falls on the person doing the work — but read the workers'-compensation section above before you take comfort in that.

Two trades Montana does not license at all

Worth knowing before you price the job. Montana licenses electricians (Title 37, ch. 68), plumbers (ch. 69), water well contractors (ch. 43), construction blasters (ch. 72), and elevator work (ch. 73) — and **nothing else in the building trades**. There is **no HVAC or mechanical contractor license**: chapter 70, "Heating, Ventilation, Air Conditioning," appears in the code as **(Repealed)**, its sections struck by Sec. 195, Ch. 575, L. 1981, and no replacement was ever enacted. There is **no gas fitter license** either — fuel gas is handled as a code, not a trade. Both kinds of work still need permits and inspection where a permit applies; neither needs a licensed installer.

37-1-109(1), (3), (4)(a)–(c), MCA; 50-60-110, 50-60-509, 50-60-515, 50-60-607, MCA; 37-69-103; 50-60-502, MCA. Repeals: 37-68-322 and 37-69-324, Sec. 11, Ch. 366, L. 2023. Absence of HVAC licensing: MCA Title 37, chapter 70 is captioned "(Repealed)" and 37-70-101, -201, and -301 each read "Repealed. Sec. 195, Ch. 575, L. 1981." Read August 2026.

POSITION CHECKLIST — SETTLE THESE BEFORE YOU PLAN THE WORK

Every line is a decision this document has shown to be yours to make, and most of them change the budget. Work down it with a pen.

Step 1 — Which Montana are you building in

	Item	Date	Notes / who answered
☐	Confirmed whether the parcel is inside a city or town, or in unincorporated county — and which local legislative body governs it Jurisdiction: _____		
☐	Asked that body, in writing, whether it has adopted the state building code for residential buildings of fewer than five dwelling units (50-60-102(1)(a)), and whether its enforcement program is certified under 50-60-302 Adopted? _____ Certified? _____		
☐	ELECTRICAL: asked who issues the electrical permit for this parcel — the Department of Labor & Industry, or a certified local program (50-60-604) Issued by: _____		
☐	PLUMBING: asked whether a local building code covering plumbing with inspection procedures is in effect here, which removes the state permit (50-60-506(3)) Answer: _____		
☐	Written answers, with the name of who gave them, filed with this kit Who answered: _____ Date: _____		

Step 2 — Your own position under Title 37, chapter 45

	Item	Date	Notes
☐	Confirmed you are building on property you own, and that you are NOT building it with the intention and for the purpose of promptly selling — the only condition on the owner exemption (37-45-104(13))		

Step 2 — Your own position under Title 37, chapter 45

	Item	Date	Notes
☐	Read 37-45-102(1)(b) and decided how you will engage trades: as separate licensed businesses, or as people you employ. The answer decides both your licensing position and your workers'-comp exposure		
☐	For every contractor engaged: license verified under Title 37, chapter 45 ON THE DATE OF THE CONTRACT, and the printout filed — this is what switches on the 37-45-202 shield Verified for: _____ Date: _____		
☐	For every one-person trade: independent contractor exemption certificate obtained and filed (39-71-417) Filed for: _____		
☐	Workers' compensation position settled in writing with your insurance agent before any paid labor sets foot on the site		

Step 3 — Trade-by-trade decisions

	Item	Date	Notes
☐	ELECTRICAL: decided between a licensed electrician and the homeowner exemption — and understood that the exemption reaches the LICENSE only, not the permit or the inspection (37-68-103(3)(a); 50-60-604)		
☐	Electrical permit obtained, and the power supplier's requirements confirmed — no permanent connection without the permit delivered to them (50-60-605); energizing without one is a misdemeanor (50-60-607) Permit #: _____ Supplier: _____		
☐	GRID-TIED: confirmed whether any solar, wind, or standby generator will interconnect with the utility — that work is NOT covered by the homeowner exemption and needs a licensed electrician (37-68-103(3)(b))		

Step 3 — Trade-by-trade decisions

	Item	Date	Notes
☐	PLUMBING: confirmed you personally will do the work if you are relying on 50-60-506(4), and that the house meets the narrower license condition in 37-69-102(1)(a) — single-family, used exclusively for your personal use		
☐	ENERGY: the adopted energy code edition and effective date read from ARM Title 24, chapter 301 and written down — you will certify to it at the end (50-60-802(1)) Edition: _____ Effective: _____		

Sources — every Montana claim in this document (verified August 2026)

What this document states	Authority
MCA Title 39, chapter 9 (Contractor Registration) repealed and renumbered effective January 1, 2026; the live chapter is Title 37, chapter 45	Ch. 481 and Ch. 644, L. 2025; MCA 37-45-104 history line
A construction contractor license is required; the application shows workers'-comp compliance, not competency	37-45-201(1), MCA
"Construction contractor" reaches an owner who employs members of more than one trade on their own property	37-45-102(1)(b), MCA
Owner working on the owner's property is exempt, occupied or not; the only condition is intent to promptly sell, with a 12-month primary-residence escape	37-45-104(13), MCA
Engaging a contractor licensed on the date of the contract shields you from employer liability for workers' comp, UI, and wages	37-45-202, MCA
The state building code does not apply to residential buildings of fewer than five dwelling units unless the local legislative body adopts it; the state may not enforce it for them	50-60-102(1)(a), (2), MCA
A local government may NOT adopt or enforce a building code more stringent than the state's	50-60-301(2)(a), MCA
No residential fire-sprinkler mandate may be included in the state building code	50-60-203(5)(a), MCA
The homeowner electrical exemption reaches the LICENSE only — compare the "licensing and inspection" wording in the same section	37-68-103(3)(a), (2), (7)(a), MCA
Grid-tied generator work on your own property is NOT exempt	37-68-103(3)(b), MCA
Electrical permits and inspections; no power supplier may energize without the permit; energizing without one is a misdemeanor	50-60-604, -605, -607, MCA

Sources — every Montana claim in this document (verified August 2026)

What this document states	Authority
The homeowner plumbing exemption reaches the PERMIT; the license exemption is narrower and differently worded	50-60-506(4); 37-69-102(1)(a), MCA
Owner permits for both trades are limited to the owner's own residence, not one built on speculation of sale or rent — a condition in the RULES, not the statutes	ARM 24.301.361(3); ARM 24.301.431(3)
Smoke and carbon monoxide alarms are required regardless of the 50-60-102 exemption	ARM 24.301.411(1)(d)
The energy code applies to residential buildings anyway, enforced by builder self-certification in writing to the owner	50-60-102(5); 50-60-802(1), MCA
A permanent energy label is attached inside the electrical panel	50-60-803, MCA; ARM 24.301.162
Unlicensed practice: cease and desist, then up to \$1,000 a day, then injunction, then a felony for knowingly violating it	37-1-109, MCA
Unlicensed plumbing is a misdemeanor, \$10 to \$100 per offense; starting without a required permit doubles the fee	50-60-515; 50-60-509, MCA
Montana licenses no HVAC/mechanical contractor and no gas fitter — chapter 70 was repealed in 1981	MCA Title 37, ch. 70 (Repealed)

Read any **MCA** section cited above — Montana Code Annotated — at mca.legmt.gov, the Legislature's own server, which publishes each section with a History line naming every session law that amended it. Read any **ARM** rule — Administrative Rules of Montana; the building, electrical, plumbing, and mechanical code adoptions live in **Title 24, chapter 301** — at rules.mt.gov, where the rule text is official and carries its effective date. Search that site by rule number rather than following a saved link: it is a search application, deep links collapse back to the search page, and a bad address returns an apparently working but empty page rather than an error. Two habits will keep you out of trouble in Montana. **First, always check whether the answer is in the MCA or the ARM**, and go read that one — Montana keeps an unusual share of what governs your house in the rules rather than the code, including real conditions on the homeowner exemptions that appear in no statute at all. **Second, watch which chapter you are in** — Montana splits one house across Title 50, chapter 60 (the building, plumbing, and electrical permits) and Title 37, chapters 68 and 69 (the electrician and plumber licenses), and an exemption written in one of them cannot waive a duty written in the other. All statute and rule text in this kit verified August 2026.